

David, Michelle

Credit's concerns are adequately addressed in this executable. We have no objection to sending it out.

Paul

-----Original Message-----

From: Portz, David

Sent: Tuesday, May 15, 2001 5:11 PM

To: Parks, Michelle

Cc: Gilbert-Smith, Doug; Tingleaf, Drew; Miller, Jeffrey; Presto, Kevin; Will, Lloyd; Curry, Mike; Radous, Paul; Day, Smith; Allen, Thresa; May, Tom; Bradford, William S.; Sager, Elizabeth

Subject: New Power QSE Agreement- execution copy

Michelle -- As discussed, attached is a redlined and an execution copy of the New Power QSE Agreement, for your review and transmission onwards to New Power's Anoush Farhangi. The document is being cc'd to the EPMI recipients you had designated. For their benefit I direct their attention to the confidentiality obligations stated in Section 7.2: in particular, EPMI will be under obligations to keep New Power's scheduling and settlements information confidential from EES and EES personnel.

Michelle, please note to New Power that: (1) New Power still needs to fill in their contact/payments information on Schedule A. (2) the Enron Guarantee format was not referenced in the document as Schedule E and Schedule E was therefore eliminated. Per the Credit Support Annex, each guarantee must be in a format acceptable to the other party. (3) The lengthy ERCOT Calendar will be kept current on the MIS website, so it was not included as 'Attachment X' to the document.

Please call me with any questions or comments. --David

<< File: NewPower QSE LSE Agr (EPMI rl 5-15-01).doc >>

<< File: NewPower QSE LSE Agr (exe 5-15-01).doc >>

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Michelle Parks/ENRON@enronXgate 05/15/2001 03:39 PM To: Kevin M Presto/HOU/ECT@ECT, Drew Tingleaf/ENRON@enronXgate, Doug Gilbert-Smith/Corp/Enron@ENRON, Mike Curry/ENRON@enronXgate, Lloyd Will/HOU/ECT@ECT, Tom May/Corp/Enron@Enron, Jeffrey Miller/NA/Enron@Enron, Smith L Day/HOU/ECT@ECT, Thresa A Allen/HOU/ECT@ECT, David Portz/HOU/ECT@ECT, Paul Radous/ENRON@enronXgate, William S Bradford/ENRON@enronXgate cc: Subject: New Power QSE Agreement is Done!

I want to let you all know that we have reached agreement on the New Power QSE Agreement. We are finalizing the execution copy right now and will send it out this afternoon.

Thanks for everyone's input in this effort.

Michelle